



Reprinted
February 13, 2026

ENGROSSED HOUSE BILL No. 1357

DIGEST OF HB 1357 (Updated February 12, 2026 3:08 pm - DI 148)

Citations Affected: IC 31-26; IC 31-27.

Synopsis: Child services provider background checks. Requires an employee of: (1) a preventative provider that operates a child welfare program; (2) a provider of home based family preservation services; (3) a child caring institution; (4) a group home; or (5) a child placing agency; to undergo a background check once every four years. Provides that the employee is not required to complete a separate federally required background check to provide additional child welfare services for the same employer.

Effective: July 1, 2026.

Rowray

(SENATE SPONSOR — WALKER G)

January 8, 2026, read first time and referred to Committee on Family, Children and Human Affairs.

January 14, 2026, reported — Do Pass.

January 20, 2026, read second time, ordered engrossed.

January 21, 2026, engrossed.

January 22, 2026, read third time, passed. Yeas 88, nays 0.

SENATE ACTION

January 27, 2026, read first time and referred to Committee on Family and Children Services.

February 9, 2026, amended, reported favorably — Do Pass.

February 12, 2026, read second time, amended, ordered engrossed.

EH 1357—LS 7076/DI 119



Reprinted
February 13, 2026

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

ENGROSSED HOUSE BILL No. 1357

A BILL FOR AN ACT to amend the Indiana Code concerning family law and juvenile law.

Be it enacted by the General Assembly of the State of Indiana:

- 1 SECTION 1. IC 31-26-3.5-5.5 IS ADDED TO THE INDIANA
2 CODE AS A **NEW** SECTION TO READ AS FOLLOWS
3 [EFFECTIVE JULY 1, 2026]: **Sec. 5.5. (a) An employee of a**
4 **preventative provider that operates a child welfare program shall**
5 **undergo a background check to which the employee is required by**
6 **federal law to submit for purposes of the employee's provision of**
7 **child welfare services:**
8 **(1) not later than four (4) years after the individual's date of**
9 **hire; and**
10 **(2) one (1) time every four (4) years thereafter.**
11 **(b) If an employee described in subsection (a) has completed the**
12 **federally required background check to provide child welfare**
13 **services, the employee is not required to complete a separate**
14 **background check for providing additional child welfare services**
15 **for the same employer.**
16 SECTION 2. IC 31-26-5-7 IS ADDED TO THE INDIANA CODE
17 AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY

EH 1357—LS 7076/DI 119



1, 2026]: **Sec. 7. (a) An employee of a provider of home based family preservation services shall undergo a background check to which the employee is required by federal law to submit for purposes of the employee's provision of child welfare services:**

(1) not later than four (4) years after the individual's date of hire; and

(2) one (1) time every four (4) years thereafter.

(b) If an employee described in subsection (a) has completed the federally required background check to provide child welfare services, the employee is not required to complete a separate background check for providing additional child welfare services for the same employer.

SECTION 3. IC 31-27-3-3, AS AMENDED BY P.L.81-2025, SECTION 3, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 3. (a) An applicant must apply for a child caring institution license on forms provided by the department.**

(b) An applicant must submit the required information as part of the application.

(c) The applicant must submit with the application a statement attesting the following:

(1) Whether the applicant has been convicted of:

(A) a felony; or

(B) a misdemeanor relating to the health and safety of children.

(2) Whether the applicant has been charged with:

(A) a felony; or

(B) a misdemeanor relating to the health and safety of children;

during the pendency of the application.

(d) The department, on behalf of an applicant, or, at the discretion of the department, an applicant, shall conduct a criminal history check of the following:

(1) Each individual who is an applicant.

(2) The director or manager of a facility where children will be placed.

(3) Each employee or volunteer of the applicant.

(4) Each contractor or individual working in the child caring institution who is likely to have unsupervised contact with children in the child caring institution.

(e) If the applicant conducts a criminal history check under subsection (d), the applicant shall:

(1) maintain records of the information it receives concerning



each individual who is the subject of a criminal history check; and
 (2) submit to the department a copy of the information it receives
 concerning each person described in subsection (d)(1) through
 (d)(4).

(f) If the department conducts a criminal history check on behalf of
 an applicant under subsection (d), the department shall:

(1) determine whether the subject of a national fingerprint based
 criminal history check has a record of:

(A) a conviction for a felony;

(B) a conviction for a misdemeanor relating to the health and
 safety of a child; or

(C) a juvenile adjudication for a nonwaivable offense, as
 defined in IC 31-9-2-84.8 that, if committed by an adult,
 would be a felony;

(2) notify the applicant of the determination under subdivision (1)
 without identifying a specific offense or other identifying
 information concerning a conviction or juvenile adjudication
 contained in the national criminal history record information;

(3) submit to the applicant a copy of any state limited criminal
 history report that the department receives on behalf of any person
 described in subsection (d); and

(4) maintain a record of every report and all information the
 department receives concerning a person described in subsection
 (d).

(g) Except as provided in subsection (h) **and section 3.5 of this
 chapter**, a criminal history check described in subsection (d) is
 required only at the time an application for a new license or the renewal
 of an existing license is submitted.

(h) Except as provided in subsection (i), a criminal history check of
 each person described in subsection (d)(2), (d)(3), or (d)(4) must be
 completed on or before the date the person:

(1) is employed;

(2) is assigned as a volunteer; or

(3) enters into, or the person's employing entity enters into, a
 contract with the applicant.

(i) An individual may be employed by a child caring institution as
 an employee, volunteer, or contractor before a criminal history check
 of the individual is completed as required under subsection (h) if all of
 the following conditions are satisfied:

(1) The following checks have been completed regarding the
 individual:

(A) A fingerprint based check of national crime information



- 1 data bases under IC 31-9-2-22.5(1).
- 2 (B) A national sex offender registry check under
- 3 IC 31-9-2-22.5(3).
- 4 (C) An in-state local criminal records check under
- 5 IC 31-9-2-22.5(4).
- 6 (D) An in-state child protection index check under
- 7 IC 31-33-26.
- 8 (2) If the individual has resided outside Indiana at any time during
- 9 the five (5) years preceding the individual's date of hiring by the
- 10 child caring institution, the following checks have been requested
- 11 regarding the individual:
- 12 (A) An out-of-state child abuse registry check under
- 13 IC 31-9-2-22.5(2).
- 14 (B) An out-of-state local criminal records check under
- 15 IC 31-9-2-22.5(4).
- 16 (3) The individual's employment before the completion of the
- 17 criminal history check required under subsection (h) is limited to
- 18 training during which the individual:
- 19 (A) does not have contact with children who are under the care
- 20 and control of the child caring institution; and
- 21 (B) does not have access to records containing information
- 22 regarding children who are under the care and control of the
- 23 child caring institution.
- 24 (4) The individual completes an attestation, under penalty of
- 25 perjury, disclosing:
- 26 (A) any abuse or neglect complaints made against the
- 27 individual with the child welfare agency of a state other than
- 28 Indiana in which the individual resided within the five (5)
- 29 years preceding the date of the attestation; and
- 30 (B) any contact the individual had with a law enforcement
- 31 agency in connection with the individual's suspected or alleged
- 32 commission of a crime in a state other than Indiana in which
- 33 the individual resided within the five (5) years preceding the
- 34 date of the attestation.
- 35 (j) The applicant or facility is responsible for any fees associated
- 36 with a criminal history check.
- 37 (k) The department shall, at the applicant's request, inform the
- 38 applicant whether the department has or does not have a record of the
- 39 person who is the subject of a criminal history check and if the
- 40 department has identified the person as an alleged perpetrator of abuse
- 41 or neglect. The department may not provide to the applicant any details
- 42 or personally identifying information contained in any child protective



1 services investigation report.

2 (l) A person who is the subject of a criminal history check
3 conducted in accordance with this section may request the state police
4 department to provide the person with a copy of any state or national
5 criminal history report concerning the person.

6 SECTION 4. IC 31-27-3-3.5 IS ADDED TO THE INDIANA CODE
7 AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
8 1, 2026]: **Sec. 3.5. (a) An employee of a child caring institution shall
9 undergo a background check to which the employee is required by
10 federal law to submit for purposes of the employee's provision of
11 child welfare services:**

12 **(1) not later than four (4) years after the individual's date of
13 hire; and**

14 **(2) one (1) time every four (4) years thereafter.**

15 **(b) If an employee described in subsection (a) has completed the
16 federally required background check to provide child welfare
17 services, the employee is not required to complete a separate
18 background check for providing additional child welfare services
19 for the same employer.**

20 SECTION 5. IC 31-27-5-4, AS AMENDED BY P.L.81-2025,
21 SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
22 JULY 1, 2026]: **Sec. 4. (a) An applicant must apply for a group home
23 license on forms provided by the department.**

24 **(b) An applicant must submit the required information as part of the
25 application.**

26 **(c) An applicant must submit with the application a statement
27 attesting the following:**

28 **(1) Whether the applicant has been convicted of:**

29 **(A) a felony; or**

30 **(B) a misdemeanor relating to the health and safety of
31 children.**

32 **(2) Whether the applicant has been charged with:**

33 **(A) a felony; or**

34 **(B) a misdemeanor relating to the health and safety of
35 children;**

36 **during the pendency of the application.**

37 **(d) The department on behalf of an applicant, or, at the discretion of
38 the department, an applicant, shall conduct a criminal history check of
39 the following:**

40 **(1) Each individual who is an applicant.**

41 **(2) The director or manager of a facility where children will be
42 placed.**



(3) Each employee or volunteer of the applicant.

(4) Each contractor or individual working in the group home who is likely to have unsupervised contact with children in the group home.

(e) If the applicant conducts a criminal history check under subsection (d), the applicant shall:

(1) maintain records of the information it receives concerning each individual who is the subject of a criminal history check; and

(2) submit to the department a copy of the information the applicant receives concerning each person described in subsection (d)(1) through (d)(4).

(f) If the department conducts a criminal history check on behalf of an applicant under subsection (d), the department shall:

(1) determine whether the subject of a national fingerprint based criminal history check has a record of a:

(A) conviction for a felony;

(B) conviction for a misdemeanor relating to the health and safety of a child; or

(C) juvenile adjudication for a nonwaivable offense, as defined in IC 31-9-2-84.8 that, if committed by an adult, would be a felony;

(2) notify the applicant of the determination under subdivision (1) without identifying a specific offense or other identifying information concerning a conviction or juvenile adjudication contained in the national criminal history record information;

(3) submit to the applicant a copy of any state limited criminal history report that the department receives on behalf of any person described in subsection (d); and

(4) maintain a record of every report and all information it receives concerning a person described in subsection (d).

(g) Except as provided in subsection (h) **and section 4.5 of this chapter**, a criminal history check described in subsection (d) is required only at the time an application for a new license or the renewal of an existing license is submitted.

(h) Except as provided in subsection (i), a criminal history check of each person described in subsection (d)(2), (d)(3), or (d)(4) must be completed on or before the date the person:

(1) is employed;

(2) is assigned as a volunteer; or

(3) enters into, or the person's employing entity enters into, a contract with the applicant.

(i) An individual may be employed by a group home as an



employee, volunteer, or contractor before a criminal history check of the individual is completed as required under subsection (h) if all of the following conditions are satisfied:

(1) The following checks have been completed regarding the individual:

(A) A fingerprint based check of national crime information data bases under IC 31-9-2-22.5(1).

(B) A national sex offender registry check under IC 31-9-2-22.5(3).

(C) An in-state local criminal records check under IC 31-9-2-22.5(4).

(D) An in-state child protection index check under IC 31-33-26.

(2) If the individual has resided outside Indiana at any time during the five (5) years preceding the individual's date of hiring by the group home, the following checks have been requested regarding the individual:

(A) An out-of-state child abuse registry check under IC 31-9-2-22.5(2).

(B) An out-of-state local criminal records check under IC 31-9-2-22.5(4).

(3) The individual's employment before the completion of the criminal history check required under subsection (h) is limited to training during which the individual:

(A) does not have contact with children who are under the care and control of the group home; and

(B) does not have access to records containing information regarding children who are under the care and control of the group home.

(4) The individual completes an attestation, under penalty of perjury, disclosing:

(A) any abuse or neglect complaints made against the individual with the child welfare agency of a state other than Indiana in which the individual resided within the five (5) years preceding the date of the attestation; and

(B) any contact the individual had with a law enforcement agency in connection with the individual's suspected or alleged commission of a crime in a state other than Indiana in which the individual resided within the five (5) years preceding the date of the attestation.

(j) The applicant is responsible for any fees associated with a criminal history check.



(k) The department shall, at the applicant's request, inform the applicant as to whether the department has or does not have a record of the person who is the subject of a criminal history check and whether the department has identified the person as an alleged perpetrator of abuse or neglect. The department may not provide to the applicant any details or personally identifying information contained in any child protective services investigation report.

(l) A person who is the subject of a criminal history check conducted in accordance with this section may request the state police department to provide the person with a copy of any state or national criminal history report concerning the person.

SECTION 6. IC 31-27-5-4.5 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 4.5. (a) An employee of a group home shall undergo a background check to which the employee is required by federal law to submit for purposes of the employee's provision of child welfare services:**

(1) not later than four (4) years after the individual's date of hire; and

(2) one (1) time every four (4) years thereafter.

(b) If an employee described in subsection (a) has completed the federally required background check to provide child welfare services, the employee is not required to complete a separate background check for providing additional child welfare services for the same employer.

SECTION 7. IC 31-27-6-2, AS AMENDED BY P.L.173-2022, SECTION 3, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 2. (a) An applicant must apply for a child placing agency license on forms provided by the department.**

(b) An applicant must submit the required information as part of the application.

(c) The applicant must submit with the application a statement attesting the following:

(1) Whether the applicant has been convicted of:

(A) a felony; or

(B) a misdemeanor relating to the health and safety of children.

(2) Whether the applicant has been charged with:

(A) a felony; or

(B) a misdemeanor relating to the health and safety of children;

during the pendency of the application.



(d) The department on behalf of an applicant, or, at the discretion of the department, an applicant, shall conduct a criminal history check of the following:

(1) Each individual who is an applicant.

(2) The director or manager of a facility where children will be placed.

(3) Each employee, volunteer, or contractor of the applicant.

(e) If the applicant conducts a criminal history check under subsection (d), the applicant shall:

(1) maintain records of the information it receives concerning each individual who is the subject of a criminal history check; and

(2) submit to the department a copy of the information it receives concerning each person described in subsection (d)(1) through (d)(3).

(f) If the department conducts a criminal history check on behalf of an applicant under subsection (d), the department shall:

(1) determine whether the subject of a national fingerprint based criminal history check has a record of a:

(A) conviction for a felony;

(B) conviction for a misdemeanor relating to the health and safety of a child; or

(C) juvenile adjudication for a nonwaivable offense, as defined in IC 31-9-2-84.8 that, if committed by an adult, would be a felony;

(2) notify the applicant of the determination under subdivision (1) without identifying a specific offense or other identifying information concerning a conviction or juvenile adjudication contained in the national criminal history record information;

(3) submit to the applicant a copy of any state limited criminal history report that the department receives on behalf of any person described in subsection (d); and

(4) maintain a record of every report and all information the department receives concerning a person described in subsection (d).

(g) Except as provided in subsection (h) **and section 2.5 of this chapter**, a criminal history check described in subsection (d) is required only at the time an application for a new license or the renewal of an existing license is submitted.

(h) Except as provided in subsection (i), a criminal history check of each person described in subsection (d)(2) or (d)(3) must be completed on or before the date the person:

(1) is employed;



(2) is assigned as a volunteer; or

(3) enters into, or the person's employing entity enters into, a contract with the applicant.

(i) An individual may be employed by a child placing agency as an employee, volunteer, or contractor before a criminal history check of the individual is completed as required under subsection (h) if all of the following conditions are satisfied:

(1) The following checks have been completed regarding the individual:

(A) A fingerprint based check of national crime information data bases under IC 31-9-2-22.5(1).

(B) A national sex offender registry check under IC 31-9-2-22.5(3).

(C) An in-state local criminal records check under IC 31-9-2-22.5(4).

(D) An in-state child protection index check under IC 31-33-26.

(2) If the individual has resided outside Indiana at any time during the five (5) years preceding the individual's date of hiring by the child placing agency, the following checks have been requested regarding the individual:

(A) An out-of-state child abuse registry check under IC 31-9-2-22.5(2).

(B) An out-of-state local criminal records check under IC 31-9-2-22.5(4).

(3) The individual's employment before the completion of the criminal history check required under subsection (h) is limited to training during which the individual:

(A) does not have contact with children who are under the care and control of the child placing agency; and

(B) does not have access to records containing information regarding children who are under the care and control of the child placing agency.

(4) The individual completes an attestation, under penalty of perjury, disclosing:

(A) any abuse or neglect complaints made against the individual with the child welfare agency of a state other than Indiana in which the individual resided within the five (5) years preceding the date of the attestation; and

(B) any contact the individual had with a law enforcement agency in connection with the individual's suspected or alleged commission of a crime in a state other than Indiana in which



1 the individual resided within the five (5) years preceding the
2 date of the attestation.

3 (j) The applicant or facility is responsible for any fees associated
4 with a criminal history check.

5 (k) The department shall, at the applicant's request, inform the
6 applicant whether the department has or does not have a record of the
7 person who is the subject of a criminal history check and if the
8 department has identified the person as an alleged perpetrator of abuse
9 or neglect. The department may not provide to the applicant any details
10 or personally identifying information contained in any child protective
11 investigation report.

12 (l) A person who is the subject of a criminal history check
13 conducted in accordance with this section may request the state police
14 department to provide the person with a copy of any state or national
15 criminal history report concerning the person.

16 SECTION 8. IC 31-27-6-2.5 IS ADDED TO THE INDIANA CODE
17 AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
18 1, 2026]: **Sec. 2.5. (a) An employee of a child placing agency shall
19 undergo a background check to which the employee is required by
20 federal law to submit for purposes of the employee's provision of
21 child welfare services:**

22 **(1) not later than four (4) years after the individual's date of
23 hire; and**

24 **(2) one (1) time every four (4) years thereafter.**

25 **(b) If an employee described in subsection (a) has completed the
26 federally required background check to provide child welfare
27 services, the employee is not required to complete a separate
28 background check for providing additional child welfare services
29 for the same employer.**



COMMITTEE REPORT

Mr. Speaker: Your Committee on Family, Children and Human Affairs, to which was referred House Bill 1357, has had the same under consideration and begs leave to report the same back to the House with the recommendation that said bill do pass.

(Reference is to HB 1357 as introduced.)

DEVON

Committee Vote: Yeas 11, Nays 0

COMMITTEE REPORT

Mr. President: The Senate Committee on Family and Children Services, to which was referred House Bill No. 1357, has had the same under consideration and begs leave to report the same back to the Senate with the recommendation that said bill be AMENDED as follows:

Page 2, between lines 2 and 3, begin a new paragraph and insert:

"SECTION 3. IC 31-27-2-14 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 14. If an employee of a:**

- (1) child placing agency (as defined in IC 31-9-2-17.5);**
- (2) home based provider of family preservation services (as defined in IC 31-9-2-44.8);**
- (3) child caring institution (as defined in IC 31-9-2-16.7);**
- (4) private secure facility (as defined in IC 31-9-2-96.5);**
- (5) group home (as defined in IC 31-9-2-48.5); or**
- (6) preventative provider;**

has completed a federally required background check to provide child welfare services, the department may not require the employee to complete a separate background check for providing additional child welfare services within four (4) years of the date on which the employee's most recent federally required background check to provide child welfare services was completed."

Re-number all SECTIONS consecutively.

and when so amended that said bill do pass.

(Reference is to HB 1357 as printed January 14, 2026.)

EH 1357—LS 7076/DI 119



WALKER G, Chairperson

Committee Vote: Yeas 8, Nays 0.

 SENATE MOTION

Mr. President: I move that Engrossed House Bill 1357 be amended to read as follows:

Page 1, line 3, after "Sec. 5.5." insert "(a)".

Page 1, between lines 10 and 11, begin a new paragraph and insert:

"(b) If an employee described in subsection (a) has completed the federally required background check to provide child welfare services, the employee is not required to complete a separate background check for providing additional child welfare services for the same employer."

Page 1, line 13, after "Sec. 7." insert "(a)".

Page 2, between lines 2 and 3, begin a new paragraph and insert:

"(b) If an employee described in subsection (a) has completed the federally required background check to provide child welfare services, the employee is not required to complete a separate background check for providing additional child welfare services for the same employer."

Page 2, delete lines 3 through 18.

Page 5, line 14, after "Sec. 3.5." insert "(a)".

Page 5, between lines 20 and 21, begin a new paragraph and insert:

"(b) If an employee described in subsection (a) has completed the federally required background check to provide child welfare services, the employee is not required to complete a separate background check for providing additional child welfare services for the same employer."

Page 8, line 15, after "Sec. 4.5." insert "(a)".

Page 8, between lines 21 and 22, begin a new paragraph and insert:

"(b) If an employee described in subsection (a) has completed the federally required background check to provide child welfare services, the employee is not required to complete a separate background check for providing additional child welfare services for the same employer."

Page 11, line 14, after "Sec. 2.5." insert "(a)".

Page 11, after line 20, begin a new paragraph and insert:

"(b) If an employee described in subsection (a) has completed the federally required background check to provide child welfare



services, the employee is not required to complete a separate background check for providing additional child welfare services for the same employer."

Renumber SECTIONS consecutively.

(Reference is to EHB 1357 as printed February 10, 2026.)

WALKER G

